



CHAPTER cxi.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to Cavan and Londonderry. A.D. 1914.
[31st July 1914.]

WHEREAS the Local Government Board for Ireland (hereinafter referred to as “the Local Government Board”) have made the Provisional Orders set out in the schedule hereto under the Public Health (Ireland) Acts 1878 to 1907 :

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to those Orders :

Be it therefore enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. The urban authorities mentioned in the Orders hereby confirmed shall not under the powers of those Orders purchase or acquire in any urban district any house which on the fifteenth day of December last was occupied either wholly or partially by thirty or more persons belonging to the working class as tenants or lodgers or except with the consent of the Local Government Board any house which was not so occupied on the said fifteenth day of December but has been or shall be subsequently so occupied. Restriction of power to take houses of working class.

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— If either of the said authorities acquire or appropriate any house or houses for the purposes of the Order relating to their district in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own families and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Short title.

3. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 4) Act 1914.

SCHEDULE.

A.D. 1914.

URBAN DISTRICT OF CAVAN.

*Provisional Order to enable the Council of the Urban District
of Cavan to put in force the Compulsory Clauses of the
Lands Clauses Acts.* Cavan.

WHEREAS the urban district council of Cavan (in this Order referred to as "the district council") require to purchase and take the lands water and rights described in the schedule hereto for the purpose of improving the supply of water to their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

41 & 42 Vict.
c. 52.

1. The district council shall be empowered to put in force with reference to the lands water and rights described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with reference to the purchase and taking of lands otherwise than by agreement or any of them.

59 & 60 Vict.
c. 54.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands water and rights described in the schedule hereto.

3. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council out of the rate applicable by that council to defray the expenses incurred by them in the execution of the Public Health (Ireland) Acts 1878 to 1907.

4. This Order may be cited as the Cavan Order 1914.

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Provisional Orders Confirmation (No. 4) Act, 1914.

A.D. 1914.

Cavan.

SCHEDULE.

County of CAVAN.

Number on Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
TOWNLAND OF BEAGHY.—RURAL DISTRICT OF CAVAN.				
1	Swamp containing 1a. 4p. and all water flowing through over or under same.	H. M. Sproule Irish Land Commission.	- - -	James McCall Frank Lee Mary Anne Lee Bridget Brady.
2	Marshy ground containing 2r. 34p. and all water flowing through over or under same.	Same	- - -	Same.
3	Field containing 22p. and all water flowing through over or under same.	H. M. Sproule	James McCall	James McCall
4	Field containing 1r. 2p. and all water flowing through over or under same.	Same	Same	Same.
5	Field containing 1r. 29p. and all water flowing through over or under same.	Same	Same	Same.
6	Bed and soil of stream containing 2p. and the right to take and convey water therefrom.	Same	Same	Same.
7	Field containing 1p. and all water flowing through over or under same.	Same	Same	Same.
TOWNLAND OF SHANKILL LOWER.—RURAL DISTRICT OF CAVAN.				
1	Swamp containing 1a. 20p. and all water flowing through over or under same.	Irish Land Commission.	- - -	Philip Lee.
2	Farm road containing 8p. and all water flowing through over or under same.	Same	—	—
3	Field containing 3r. 26p. and all water flowing through over or under same.	Same	- - -	Rose or John Reilly.
4	Field containing 1r. 22p. and all water flowing through over or under same.	Same	- - -	Philip Lee.
5	Field containing 38p. and all water flowing through over or under same.	Same	- - -	Same.

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Number on Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.	A.D. 1914.
					<i>Cavan</i>
6	Field containing 30p. and all water flowing through over or under same.	Irish Land Commission	- - -	Philip Lee.	
7	Bed and soil of stream con- taining 2p. and the right to take and convey water therefrom.	Same	- - -	Same.	
TOWNLAND OF CORRANURE—RURAL DISTRICT OF CAVAN.					
1	Swamp containing 1r. 14p. and all water flowing through over or under same.	Irish Land Commission.	- - -	Terence Fitz- patrick.	
2	Field containing 2r. 10p. and all water flowing through over or under same.	Same	- - -	Same.	
3	Field containing 1r. 35p. and all water flowing through over or under same.	Same	- - -	Same.	
4	Field containing 7p. and all water flowing through over or under same.	Same	- - -	Same.	
TOWNLAND OF TOWNPARKS—URBAN DISTRICT OF CAVAN.					
1	Field containing 13p.	Lord Farnham	Marianne Ers- kine John Wilson Ers- kine Annie Brady.	Fanny Gan- non.	
2	Field containing 2r. 8p.	Same	Same	Same.	

Given under our seal of office this fifteenth day of May in
the year of our Lord one thousand nine hundred and
fourteen.

(L.S.)

(Signed) H. A. ROBINSON.

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Provisional Orders Confirmation (No. 4) Act, 1914.*

A.D. 1914.

COUNTY BOROUGH OF LONDONDERRY.

*Londonderry. Provisional Order to enable the Corporation of Londonderry
to put in force the Compulsory Clauses of the
Lands Clauses Acts.*

WHEREAS the mayor aldermen and burgesses of the county borough of Londonderry acting by the town council (in this order referred to as "the corporation") as the sanitary authority for that county borough require to purchase and take the lands water and rights described in the schedule hereto for the purpose of improving the supply of water for the said county borough:

41 & 42 Vict.
c. 52. Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of any other power enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

59 & 60 Vict.
c. 54. 1. The corporation shall be empowered to put in force with reference to the lands water and rights described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands water and rights described in the schedule hereto and the power given by this Order to the corporation with reference to the same shall cease after the expiration of five years from the date of the Act confirming this Order.

3. Any arbitrator appointed for the purposes of this Order may if he thinks proper on the application of the corporation award the provision of special supplies of water either in addition to or in substitution for other compensation.

4. The costs and expenses of the corporation and of the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the corporation as part of their expenses under the Public Health (Ireland) Acts 1878 to 1907.

5. This Order may be cited as the Londonderry Order 1914.

[4 & 5 GEO. 5.] *Local Government Board (Ireland) [Ch. cxi.]*
Provisional Orders Confirmation (No. 4) Act, 1914.

SCHEDULE.

A.D. 1914.

COUNTY OF LONDONDERRY.

Londonderry

Number on Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
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TOWNLANDS OF GORTGRANAGH AND CLONDERMOT—RURAL DISTRICT OF LONDONDERRY No. 1.

1	The waters of the Burngibbagh River and the right to take and convey the same.	Robert Stevenson Colonel W. R. Hamilton Beresford Ash or Irish Land Commission Mrs. Katherine Lopdell T. Ballantine and Sons.	Robert Strawbridge David B. Ballantine John Simpson T. Ballantine and Sons.	Robert Strawbridge David B. Ballantine John Simpson T. Ballantine and Sons.
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TOWNLAND OF GORTGRANAGH—RURAL DISTRICT OF LONDONDERRY No. 1.

2	Bed and soil of river containing 2p. and the right to take and convey water therefrom.	Robert Stevenson	Robert Strawbridge.	Robert Strawbridge.
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TOWNLAND OF CLONDERMOT—RURAL DISTRICT OF LONDONDERRY No. 1.

3	Bed and soil of river containing 2p. and the right to take and convey water therefrom.	Col. W. R. Hamilton Beresford Ash or Irish Land Commission.	David B. Ballantine.	David B. Ballantine.
4	Portion of field containing 1a.	Same	Same	Same.

Given under our seal of office this fourth day of June in the year of our Lord one thousand nine hundred and fourteen.

(L.S.)

(Signed)

EDMUND BOURKE.

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